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Submitted via electronic mail (ostp-ai-rfi@nitr.gov)

AI Action Plan
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Re: Comments on the OSTP's Development of an AI Action Plan, Document No. 2025-02305, from MX Technologies, Inc.

Introduction

MX Technologies, Inc. ("MX") appreciates the opportunity to contribute to the OSTP's development of an AI Action Plan. At MX, our mission is to empower the world to be financially strong. We do this by helping financial institutions, fintechs, and businesses understand and do more with consumer-permissioned financial data so that they can better serve their consumers. For the past 13 years, MX has focused on improving customer outcomes by helping these organizations to reliably connect to financial data, generate intelligence that drives growth and personalized insights for consumers, and deliver better money experiences to consumers.

As a pioneer company in the financial data and software space, we understand how data access can fuel AI innovation in financial services — benefiting both consumers and the economy. AI presents immense opportunities across the financial services ecosystem. Depository institutions, loan providers, fintechs, and payment platforms are already providing AI-powered services that benefit consumers today. Overall, the future of AI in finance, including the automated management of financial activities, could revolutionize the way Americans experience and manage their financial lives. We support the OSTP's efforts and appreciate the chance to provide recommendations focusing on financial data access and AI's role in financial services, emphasizing innovation while mitigating risks.

As you develop your AI Action Plan, we recommend you consider modernizing financial data regulations, improving coordination between regulatory agencies to ensure consistency, and standardizing risk assessment and mitigation frameworks. These areas are critical to providing clear rules of the road for companies to safely innovate and serve their customers in the AI space, while protecting consumers from potential risks.

Data Access and AI Effectiveness

AI models are only as effective as the data used to train and operate those models. But, many AI models — particularly in financial services — can suffer performance challenges due to incomplete datasets. For instance, AI models that focus on delivering personalized recommendations to consumers based on their spending and financial behaviors may be limited or inaccurate if they only see part of a consumer’s financial history. The average consumer has at least five or more financial accounts with various banks, credit unions, and other financial providers.¹ This fragmented financial experience can leave consumers — and the financial providers who serve them — with blindspots that can negatively impact efforts to improve consumer financial wellbeing. Without connecting those various accounts and sources of financial data together, organizations can’t effectively deliver the products and services that best meet consumer needs.

Comprehensive access to permissioned consumer financial data (such as checking accounts, credit, and investment history) can help AI models to better understand financial behavior, leading to more accurate and consumer-centric guidance and outcomes. Historically, credit bureaus have used data like credit utilization, credit history length, payment history and public records to determine a consumer’s creditworthiness. Today, AI models have the opportunity to better assess creditworthiness through the additional use of alternative data to create a more accurate picture of creditworthiness. For example, the Consumer Financial Protection Bureau ✓CFPB★ highlighted that cashflow data, in addition to traditional credit scores, can better assess a borrower’s creditworthiness, improving access to credit for underserved populations.²

AI models that do not have access to this type of alternative data (such as rent or utility payment history) may unfairly assess creditworthiness.³ Models trained only on traditional credit history may favor applicants from historically credit-approved

¹ [MX Blog: “Artificial Intelligence: How to Move from Science Project to Value Add for Banks”](#)

² [CFPB Explores Impact of Alternative Data on Credit Access for Consumers Who Are Credit Invisible](#)

³ [CFPB Explores Impact of Alternative Data on Credit Access for Consumers Who Are Credit Invisible](#); see also [Increasing Access to Affordable Mainstream Credit Using Alternative Data](#).

groups, depriving those without sufficient credit history — despite their actual repayment capability. Such AI models operate based on a limited view of consumers' financial strength, relying on historical patterns rather than a holistic understanding of an individual's ability to repay a loan.⁴

Limited data can result in self-fulfilling prophecies in AI predictions. For example, an AI model facilitating small-business lending might use county-level employment trends or regional economic indicators as a proxy for business risk. While macro data can be predictive, relying on it in isolation can unfairly penalize healthy businesses in struggling regions. If lenders withdraw from these regions based on biased AI predictions, the local economy may worsen, reinforcing the negative trends.

With more comprehensive data (such as years of transaction data) AI models can distinguish traditionally perceived credit concerns from true default risk. Research shows that fintech lenders using alternative data (like real-time cash flows and online transaction history) are able to lend successfully in areas that traditional models deemed too risky, achieving more accurate risk predictions that lead to both increased credit availability and loan performance.⁵

Use of broader, more complete datasets — reflecting individual histories and behaviors based on permissioned data — can break these cycles and improve outcomes when appropriate guardrails are in place. Important guardrails for the use of large datasets should consider real-time monitoring systems to ensure data security and privacy, validation frameworks to ensure data accuracy, including appropriate levels of human review, and ethical guidelines to both protect consumers from risks of bias and to ensure that data is properly permissioned for training and use.

AI, when implemented properly and responsibly, can enhance economic resilience by providing more accurate, context-sensitive risk assessments. Better data inputs to AI models can lead to increased innovation and reduced risk of inaccurate decisions.

Consumer-Centric AI Development

MX advocates for AI models in finance that prioritize consumer well-being and empowerment. AI models should be designed to improve financial health, helping

⁴ [Brookings Institute: "Algorithmic bias detection and mitigation: Best practices and policies to reduce consumer harms"](#)

⁵ See [Congressional Research Service, Alternative Data in Financial Services](#).

individuals save, borrow, and invest more efficiently and effectively. Future policy decisions impacting AI should keep consumer benefit at their center. For instance, such decisions should enable more equitable lending decisions based on more complete data sets, including data inputs like consistent on-time payments or seasonal income variations.

In practice, we envision that AI models in financial services will evolve from today's basic insight tools into proactive financial optimization services. Many consumers today receive automated insights from their financial services providers (*e.g.*, *"You spent \$300 on dining out last month"* or *"You could save \$50 by refinancing this loan."*), but AI models with "read access" to consumer financial data can make these kinds of insights even more targeted and impactful for consumers. And, while these insights are indeed helpful, the approaching era of "write access" for AI models in financial services is going to be truly transformative for consumers' financial wellbeing. The concept of "self-driving finance" is now emerging, where AI agents automatically manage routine financial tasks and even make optimized decisions on behalf of consumers with their consent and guidance.⁶

For example, an AI agent could automatically move money from a checking account to a high-yield savings account whenever a surplus is detected, pay bills at the optimal time to avoid fees, continuously shop for better insurance or loan rates, and seamlessly switch providers for the consumer's benefit. AI model access to, and use of, complete financial datasets for individuals and businesses becomes even more important in this context. If AI agents are to take action on behalf of consumers or businesses, it is essential that the agent has a 360-degree view of the person's or business's financial situation to ensure the actions it takes are beneficial.

We are at a critical moment in time, where AI models are being trained by datasets that may be incomplete, inherently biased, or based on only publicly available data. This will impact the long term efficacy of these models. Having 'traceability' built into model assessment — where it's clear which datasets were used to train models, will be a layer of protection and insight for consumers, businesses, and regulatory agencies alike.

Utilizing proper safeguards and requiring consumer consent, AI agents can act like a personalized financial advisor or money manager that works 24/7 in the

⁶ [Andreesen Horowitz: "Money on Autopilot: The future of AI and Personal Finance"](#)

consumer's interest, significantly reducing the mental load of financial management. We believe this consumer-centric vision should inform the AI Action Plan.

Policy Recommendations

Policymakers should encourage AI developments that actively improve individual financial health and promote innovation, not just those that make backend processes more efficient.

- **Modernize Financial Data Regulations for Secure Data Access:** Support the recent rulemaking implementing Section 1033 of the Dodd-Frank Wall Street Reform and Consumer Protection Act of 2010, which allows consumers to share financial data with trusted third parties. Expand Rule 1033's definition and scope of "data providers" to include other "covered persons" who possess financial data (such as cryptocurrency, investment, loan, and health savings data) that consumers need to access. Strengthen privacy and security safeguards and encourage secure data transfer protocols like APIs. Clarify and expand Rule 1033's definition of "covered data" to permit the use of de-identified data by authorized third parties (subject, of course, to the continuing prohibition on selling such data and the obligation to maintain adequate data security) to ensure that consumer-beneficial AI innovation can continue.
- **Improve Interagency Collaboration on Financial Data and AI Oversight:** OSTP should facilitate coordination between agencies (*e.g.*, CFPB, FDIC, Federal Reserve, FTC★) to ensure consistent standards on data sharing, model governance, and consumer protection. A formal task force could align policies to make sure regulations are not redundant or conflicting across departments.
- **Support AI Risk Assessment and Mitigation Frameworks:** Encourage the adoption of voluntary best practices like the NIST AI Risk Management Framework to ensure fairness, transparency, and accountability in AI models. Regulatory frameworks should be risk-based allowing for continued flexibility and innovation while addressing high-risk AI applications with appropriate scrutiny.

Conclusion

MX believes AI can revolutionize financial services in a significant and positive way by offering more personalized, integrated, and efficient solutions. For AI to reach its full, beneficial potential in financial services, it must be empowered by

rich, permissioned data — and guided by robust policy frameworks that prioritize innovation, consumer benefit, and safety. We encourage OSTP to incorporate our recommendations into the AI Action Plan to foster innovation while ensuring consumer protections. By modernizing data regulations, fostering interagency collaboration, and implementing AI governance frameworks, the U.S. can lead the way in responsible AI deployment in financial services.

We look forward to continued engagement with the OSTP as the AI Action Plan develops. Please feel free to contact us for further discussion or clarification.

Sincerely,

Jane Barratt
Chief Advocacy Officer
MX Technologies

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